



JAMAICA CONSTABULARY FORCE

National Police College of Jamaica Faculty of Initial and Probationary Training Code of Conduct for Trainee & Probationer Constables

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Code of Conduct

Probationary Constables



Jamaica Constabulary Force
National Police College of Jamaica
Faculty of Recruit and Probationer Training
February 2015.

CODE OF CONDUCT AGREEMENT FOR TRAINEE & PROBATIONER CONSTABLES

INTRODUCTION

The Jamaica Constabulary is committed to the achievement of high ethical standards of conduct of members. This Code of Conduct is to provide Trainee and Probationer Constables with information on the ethical principles, associated values, and standards of conduct that police officers are expected to maintain throughout institutional and on-the-job training as well as **throughout** their service in the organization.

PURPOSE AND SCOPE

This Code is in support of the laws, policies, regulations and guidelines established for the good order and discipline of the Force.

On first appointment as Constable the period of training is deemed a period of probation. Each member on enlistment, having duly taken the Oath of Office, will undertake 24 months of training; the first **six** months shall be institutional at the National Police College of Jamaica (NPCJ) and the remaining **18** months will be done through on-the-job training at the various formations across the Force to which probationers will be posted.

This Code is a necessary aide-memoir for the Trainee/Probationer Constables to help familiarise them with principles to assist them to determine and adopt the acceptable standards of conduct and performance necessary for confirmation according to Section 24(b) of the Police Service Regulation 1961.

During this two- year period members are to be supported and encouraged to develop the habit of self-directed learning which will form the basis for continued growth and development.

The standards of conduct expected at the Institution and the Divisions are set out below.

As a Trainee/Probationer Constable, I _____ agree to abide by the guidelines listed in this Code of Conduct. I will uphold the principles of my Oath of Office, and the Mission of the JCF and will strive to ensure that my actions and conduct do not bring scandal and embarrassment to the Force.

I accept that I have a duty to make myself knowledgeable on the duties and responsibilities of a

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Constable as laid out in the laws, regulations, policies and guidelines. I also have a responsibility to seek guidance and clarity where necessary.

I. DISCIPLINE

- i. Individual and group discipline is indispensable to the JCF fulfilling its mission. Each member while being subject to externally imposed discipline must work to develop self-imposed discipline and control, with each officer having due regard for his/her official position.
- ii. Trainee/Probationer Constables are expected to comply with and uphold the laws, policies, rules and regulations of the Force and should avoid breaches such as laid out in the Second Schedule Police Service Regulations 46(2) (3), and the Institutional Guidelines of the NPCJ.

I will strive to avoid committing Second Schedule Offences

1. Absence from Parade
2. Be dirty or untidy in his person.
3. Being deficient of clothing or equipment
4. Leave guards, patrols, beats or posts.
5. Irregular conduct when on duty or parade.
6. Permitting females/males to enter barracks without authorization.
7. Failing to comply immediately with an order.
8. Soliciting or receiving gratuity.
9. Disrespect to seniors in rank
10. Incivility to any member of the Public.
11. Refusing or neglecting to pay any lawful debt.
12. Fighting or creating a disturbance
13. Drawing a revolver or bayonet for use without authority, except in self-defence.
14. Making any alteration or erasure in any public document, or in any official book or record for the purpose of fraud or deceit.
15. Making any false entry in any official book.
16. Failing to make an entry in any official book as to the performance of any duty, matter or thing, which ought to be entered.
17. Treating any prisoner or other person cruelly, harshly or with unnecessary violence, or without good and sufficient cause making any unlawful or unnecessary arrest.
18. Over holding any complaint or charge

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19. Idling or gossiping on duty.
 20. Failing to report any matter, which it is his duty to report.
 21. Gambling
 22. Prevaricating before any court or any enquiry
 23. Entering spirit licensed premises while on duty, not being required there by any duty.
 24. Failing to take prompt measures for the arrest of an offender, or to make immediate investigation when called on
 25. Borrowing money directly or indirectly from or through any other member of the Force of inferior rank
 26. Any act, conduct or neglect to the prejudice of good order and discipline, other than those which are required to be reported to the Commissioner of Police, whether or not such act, conduct or neglect has been in the execution of duty.
- iii. While at NPCJ Trainee Constables are to develop the demeanour, posture and conduct of a professional which is a legitimate and non-negotiable expectation of the organization.

I will avoid the following conduct.

1. Display loud, rowdy or boisterous behaviour.
2. Be found in any out of bound areas without authorization.
3. Play loud or lewd music.
4. Behave disrespectful to fellow student, ancillary staff or instructors.
5. Smoke outside designated smoking areas.
6. Exhibit oppressive behaviour.
7. Use lewd or offensive language.
8. Be absent from barrack, class, parade or NPCJ compound without permission
9. Fail to pay compliment.
10. Disobey instructions given on the firearm range.
11. Entertain unauthorized persons in restricted areas.
12. Wilfully, recklessly or negligently destroy Government Properties.

II. PUNCTUALITY AND ATTENDANCE

Punctuality is being reliable, a hallmark of professionalism. Therefore I will

1. Be present at least 15 minutes before the start of scheduled activities whether, duty, classroom, drills, inspection parades, or anywhere I am required to be.

2. Remain on the NPCJ campus unless on pass.

III. ACTS OF DISHONESTY

Honesty is a key attribute of the professional police officer and which all members are expected to live by.

I will not engage in any act of dishonesty such as stealing or cheating on examinations as such conduct can lead to my arrest and/or dismissal.

IV. CELLULAR PHONES AND SOCIAL MEDIA

I will use cellular phones and other gadgets within the authorized areas and during designated time periods.

I will not expose myself and the business of the organization on social media sites that can compromise, undermine or discredit the image of brand JCF.

V. PASSES AND LEAVE FROM NPCJ

When proceeding on pass I will:

1. Provide contact information (address and telephone number) before proceeding on pass.
2. Log my time in the specified register before proceeding on pass and on return.
3. Be responsible and accessible to NPCJ while on pass.
4. Return to NPCJ at or before the required time specified by the pass.
5. Immediately make contact with the NPCJ's Reception Area at 749-9431, the Duty Sub-Officer or the Training Officer, Police Control (978-6462) or the nearest Police Station if unable to return to NPCJ by the required time.

VI. VISITORS TO THE NPCJ CAMPUS

I will

1. Meet my visitors at the Reception Area.
2. Entertain my visitors in the designated public spaces and NOT the dormitories
3. Ensure that my visitors abide by the scheduled visiting hours.
4. Inform my visitors of the expected standard of behaviour required at NPCJ.

VII. HYGIENE

I am

1. Responsible for my personal hygiene and the cleanliness of my living space
2. To ensure that my nails and hair are properly groomed at all times.
3. To be clean and appropriately attired at all times
4. To practice caring for the general environment to promote good hygiene and sanitation

VIII. SEXUAL HARRASSMENT

Sexual harassment is against the policy, good order and discipline of the Force (Force Orders 2533). Sexual harassment generally refers to actions that are sexually directed are unwanted and subject the worker to adverse employment conditions or create a hostile work environment. Sexual harassment can occur between peers, superior and inferior ranks and among co-workers.

No member should accept or be subjected to the unwelcome advances, suggestions, or being touched by another person regardless of rank or position in the organization.

Therefore, I will not

1. welcome advances, requests, favours, verbal or physical conduct of a sexual nature on or off the NPCJ campus
2. Touch, suggest or make advances or in any way sexually harass anyone on or off the NPCJ campus
3. Hesitate or delay reporting incidents of sexual harassment
4. Accept any employment outcome that is based on the granting of sexual favours
5. By my actions help create a hostile work environment caused by sexual teasing, telling of sexually explicit jokes, sexually suggestive looks, gestures, repeated requests for dates, or make unwanted physical contact such as touching, fondling, pinching, or 'cornering/trapping'

IX. STAND TO QUARTERS

I will

1. Prepare dormitory/barrack accommodation for inspections on a daily basis.
2. Present personal belongings and regulation accoutrements issued to me for inspection when required.

X. ALCOHOL CONSUMPTION

The JCF expects sobriety from its members at all times especially while on duty; alcohol impairs judgment and composure. I will exercise self-discipline and so **I will not**

1. Consume alcohol to the extent that I become intoxicated on or off duty.
2. Consume alcohol during training hours or while on duty.
3. Consume alcohol prior to taking up my tour of duty.

XI. SMOKING

Smoking in public places and on government facilities have been prohibited by the Public Health (Tobacco Control) Regulations, 2013 Ministry of Health Jamaica. For this and the

related health benefits to myself and others **I will**

1. Abide by the Smoking Regulations
2. Smoke only in designated smoking areas.
3. Smoke outside my training period.
4. Not influence any of my colleagues to smoke.
5. Take steps to protect my colleagues from the dangers of second-hand smoking.

XII. DANGEROUS DRUGS

The use of banned and dangerous substances by any member would clearly be in violation to the laws of the land and the goal of the JCF to promote a drug-free work environment. It is the duty of every member to uphold and protect the integrity and image of the organization by his/her actions both on and off active duty.

I respect the laws of the land and support a drug-free work environment therefore I

1. Will not use, traffic, or deal in ganja or any other prohibited substances as a sworn police officer.
2. Am aware that I will be charged and dismissed from the Jamaica Constabulary Force if I am found in violation of the Dangerous Drug Act.

XIII. DRESS CODE

The Book of Rules (1988) For the Guidance and General Direction of The Jamaica Constabulary Force stipulates the dress code for members. Other provisions are made in **Force Orders 3402 dated 16.08.12**, and **Force Orders 3496 dated 05.06.14** treating on hairstyles and other related issues. The dress code established by National Police College of Jamaica is for the guidance of trainees during initial training.

NO adjustment shall be made to the uniform- especially pants and shirts- to make them **tight-fitting** in keeping with current trends. Alterations should only be done to achieve a well-groomed and professional appearance. Members are ambassadors of the Force whether on or off duty and therefore should strive to be clean and neatly groomed.

I will conform to the dress code of the Jamaica Constabulary Force as stipulated and wear

1. Identification card/class badge and insignia in the approved manner at all times
2. The appropriate gear/uniform for class, parades, physical training and any other activity specified by the NPCJ
3. My uniform immaculately clean and neatly fitted, with boots highly glossed and properly laced at all times.

XIV. INITIAL POSTING AND PROBATIONARY PERIOD

The Police Service Regulations 1961 24 (6) sets out that on first appointment to the Force a Constable shall during the period of his training be deemed to be on probation... Each newly sworn member must be aware that the duration of his/her training continues after initial posting from the NPCJ. Confirmation in the position of Constable requires fulfilment of not only the foregoing criteria, but others relevant to the remaining probationary period and thereafter for re-enlistment.

i. DUTIES OF A CONSTABLE

During this probationary period the Constable is expected to master the knowledge, tasks, duties and responsibilities of the rank as set out in the Constabulary Force Act and other legislation as well as those set out in policies and procedures. The Constable during this period must demonstrate 'such qualities as likely to render him a useful member of the Force ...so that he can ...be deemed to have been duly confirmed as respects his enlistment.

I am aware that confirmation of my enlistment is dependent on my performance and attendance at work, maintaining good health, showing due regards for my conduct in and outside the Force, being honest and reliable and adhering to the guidelines established to maintain the good order and discipline of the Force.

I will

1. Exercise due diligence while on duty, paying particular attention to safety procedures at all time to ensure the safety of myself, colleagues and members of the public
2. Be responsible and accountable for all uniforms, equipment and other government property entrusted to me for personal and general use
3. Seek the appropriate leave to be absent from lectures, duty, or any other activity for which I am detailed; in the case of illness submit a valid medical certificate
4. Be responsible when dealing with government and civilian property as laid out in Force policy
5. Adopt and support the conservation practices of the Force
6. Maintain the professional standards of the JCF during interaction with customers, paying particular attention to: **Citizen's Charter, Firearm Use of Force and Human Rights Policy, Police Public Interaction and Diversity Policies.**
7. Keep my private life unsullied and in accordance with the Code of Ethics of the Jamaica Constabulary Force.

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8. Not associate or pursue relationship (s) with person (s) of questionable character that is likely to bring the Force into disrepute.
9. Annually declare my assets in compliance with the Corruption Prevention Act.
10. Attend **ALL** lectures held over my probationary period. Take responsibility for my growth and development as a Constable by promptly investigating reports made to me and where appropriate effect arrests, prepare case files and attend court as required. I will also support and engage in Community based Policing activities
11. Will seek guidance from knowledgeable and honourable members of the organization
12. Will shun all influence and efforts intended to sway me from the obligations of my Oath and duties as a Constable

NOTES

- I. **Extension of the probationary period** - The probationary period **may** be extended in the event that the preceding guidelines are not adhered to. The period may also be extended in the following circumstances:
 - a) Pregnancy; leave will be in keeping with the Maternity law of Jamaica. Employees are entitled to maternity after completion of one year of employment. 56 days are allowable by Law.
 - b) Extended sick leave due to duty related injuries or accidents that interrupts the probationary period
 - c) Any other legitimate and proven circumstance that prevents the probationer from completing the number of contact hours necessary for his or her assessment.

II. Leave Entitlement

- a. Vacation Leave: Each member is **entitled to 28 days per year for the first three years** of employment and thereafter 35 days per year. It is a member's responsibility to apply for leave which shall be granted based on the exigencies of the service. In case where leave is **not** approved a member is also responsible for applying for **further** accumulation of leave **at 105**. Further delay of leave requires application to accumulate up to **175**. Thereafter the member will **cease** to earn leave.
- b. Departmental Leave: 14 days departmental leave per year.

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- c. Sick Leave: 28 days per year

III. Separation from the JCF

AMENDMENT TO SECTION 5 OF THE CONSTABULARY FORCE ACT (Force Orders No. 3665, Part I, Sub. No. 8 dated 2017-08-31)

A consequential amendment from The Law Reform (Zones of Special Operations)(Special Security and Community Development Measures) Act is Section 5 of the Constabulary Force Act, which now reads:

‘Sub-Officers and Constables of the Force may be enlisted for a term of five years, and no Sub Officer or Constable of the Force, so enlisted, shall be at liberty to withdraw himself from the Force until the expiration of that term; and no Sub-Officer or Constable of the Force who has not been enlisted for a term shall be at liberty to withdraw himself from the Force until the expiration of six months from the time he shall have given notice in writing of his intention so to do to the Officer under whose immediate orders he shall be; and if any Sub-Officer or Constable shall so resign or withdraw himself before the expiration of such term, without the permission, of the Commissioner or without such previous notice, *he commits an offence and is liable on summary conviction in a Parish Court, to a fine not exceeding Two Hundred and Fifty Thousand Dollars or to imprisonment for a term not exceeding three months* (emphasis added)’.

The practice of automatically accepting resignations especially at short notice is proving detrimental to good administration.

Some of the challenges are:

- Disruption to the functioning of formations from the sudden loss of Specialists who are not easily replaced. —
- Dismissal of cases for want of prosecution where members who are critical witnesses separate without making adequate provision for the continuation.
- Inability for the organization to implement retention strategies owing to the absence of data that should have been captured at an exit interview.

Effective from Force Orders No. 3662 dated 2017-08-10, the grant of permission to resign/withdraw will be determined on the merit of each case, but in general is likely to be denied where;

1. The notice is less than six months or in exceptional circumstances less than four weeks;
2. Due to the fault of the applicant, a final appraisal is not completed;
3. Due to the fault of the applicant an Exit Interview was not conducted;
4. A certificate that the member is not a witness or that adequate provision has been made for the continuation of any case is not appended; or
5. Government properties issued for the performance of duty are not returned.

The withdrawal of service by any member where the permission to resign has been denied, in addition to being a bar to any future readmission or the grant of a recommendation, may result in:

1. Dismissal in accordance with Regulation 27(1) of the Police Service Regulations 1961.
2. Prosecution under Section 5 of the Constabulary Force Act.

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CERTIFICATION

I hereby certify that I have read and that I understand the contents of this Code of Conduct for Trainee and Probationary Constables. I am fully aware that if I violate any of the terms and conditions laid out in this document I may be subjected to disciplinary action which may result in my dismissal from The Jamaica Constabulary.

Signature: _____

Date: _____

Witness: _____

Date: _____